

SIMI CHIEF SAFDAR NAGORI'S ARREST, MARCH 26, 2008

Success rates of nabbing terrorists could improve significantly if a Central investigative agency is established to probe such cases

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CLEAR THE LEGAL LOGJAM

After 9/11, the George Bush administration passed the USA Patriot Act—the acronym for Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act—that allowed law enforcement agencies to monitor telephone, e-mail communications, medical, financial and other records of citizens, apart from enhancing the discretion of immigration authorities in detaining and even deporting immigrants suspected of involvement in terrorist activities. It also empowered the Treasury Department to regulate financial transactions so as to cut off illegal funding to terrorists not just in the US but elsewhere too. It helped US officials significantly combat domestic terrorism and prevented a recurrence of 9/11.

M.B. Kaushal, India's former secretary for internal security, says, "The problem is that we don't have tough laws to deter these terrorists." Since

the abolition of the contentious Prevention of Terrorism Act by the UPA in 2004, there has been no anti-terror law. Security experts say there is a crying need for a new terror law which would give the police sweeping powers to arrest and investigate suspects, but with harsh penalties for misuse by the law enforcers. "The law does not deter a terrorist who is prepared to die, but it can deter the overground worker whose help he seeks," says former IB chief Ajit Doval. Both Gujarat and Rajasthan, BJP-ruled states, say their attempts to pass anti-terror laws are being stymied by the Centre for political reasons.

STRIKE WITH DECISIVE FORCE

Experts say that the problem with the current approach to tackling terrorism is that it is based on learning from past mistakes and plugging the loopholes. They argue that India's security agencies should anticipate where terrorists will strike next